

24STCV23869 24STCV23869

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-08-05

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C406%2C08%2F05%2F2026

Source SHA-256: e32314c03c7b0a5cc1a1303959ee96888081382f7da6f463c550bb5a4a5fd303

Case Number: 24STCV23869 Hearing Date: August 5, 2026 Dept: 406

PETER BECK,

Plaintiff,

v.

SOUTHERN REAL ESTATE HOLDING LLC, et

al.,

Defendants.

Case No.: 24STCV23869

Hearing Date: August 5, 2026

[TENTATIVE]

order RE:

plaintiff's motion for sanctions (CRS#
0777)

BACKGROUND

On September 16, 2024, Plaintiff

Peter Beck filed this action against Defendants Southern California Real Estate Holding LLC (SCREH) (erroneously sued as Southern Real Estate Holding LLC), Adam Christopher, and Christopher Berger. Plaintiff subsequently identified Adam Berger as Doe 1 and American Plus Bank, N.A. as Doe 2.

Plaintiff filed the operative Second Amended Complaint on December 23, 2025. The SAC asserts (1) declaratory relief, (2) quiet title to prescriptive easement, (3) private nuisance, and (4) injunctive relief. Plaintiff and Defendants own adjacent properties, and the dispute concerns usage of Defendants' parking lot to access a driveway for egress.

On March 27, 2026, the Court granted Plaintiff's motions to compel Defendant SCREH to produce documents in response to RFP, Sets Two and Three. The Court found that Defendant's production was incomplete and not properly labeled. The Court ordered Defendant to produce documents within 20 days and to identify the documents responsive to each RFP.

On June 22, 2026, Plaintiff filed the instant motion for sanctions for Defendant's purported failure to abide by the Court's March 27 order. Defendant filed an opposition on July 24, 2026. Plaintiff filed a reply on July 28, 2026.

DISCUSSION

The Court's March 27 order concerned RFP (Set Two) Nos. 1-3, 8-10 and RFP (Set Three) Nos. 1-2. Defendant responded to the subject requests with statements of compliance. Thus, the Court ordered Defendant to produce responsive documents within 20 days and to identify the documents responsive to each request.

Defendant produced documents on July 16, 2026, after this motion was filed and beyond the 20-day deadline imposed by the Court. (Peng Decl. ¶ 6.) Moreover, Defendant only contends that the documents are responsive to RFP (Set Two) No. 10 and RFP (Set Three) No. 2. (Id., ¶¶ 7-8.) Plaintiff contends that Defendant has yet to produce responsive documents to RFP (Set Two) Nos. 1-3 and 8. (Beck Reply Decl. ¶ 2.) Therefore, Defendant is ordered to produce the remaining responsive documents.

Plaintiff is not entitled to attorney's fees because he is self-represented, though he may recover expenses tied to the motion. (See *Trope v. Katz* (1995) 11 Cal.4th 274, 292; *Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1017.) Therefore, Plaintiff may recover the \$60 filing fee. The Court declines to impose sanctions under

Code of Civil Procedure section 177.5. The Court declines to impose issue or evidentiary sanctions, which are disproportionate to the dereliction.

CONCLUSION

Plaintiff's motion for sanctions is GRANTED in part. Defendant shall produce documents responsive to RFP (Set Two) Nos. 1-3 and 8 within 20 days of today. The Court sanctions Defendant in the amount of \$60, to be paid within 20 days of today.